



CHAPTER xxvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Falkirk and District Tramways. [25th June 1912.] A.D. 1912.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Falkirk and District Tramways Order Confirmation Act 1912. Short title.

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SCHEDULE.

FALKIRK AND DISTRICT TRAMWAYS.

Provisional Order to revive the powers and extend the time for the construction of certain Tramways and Street Works authorised by the Falkirk and District Tramways (Extensions) Order 1906 to revive the powers and extend the time for the acquisition of Lands in connexion therewith and for other purposes.

WHEREAS by the Falkirk and District Tramways Order 1901 (in this Order called "the Order of 1901") the Falkirk and District Tramways Company (in this Order called "the Company") was incorporated with a share capital of one hundred and fifty thousand pounds and with power to borrow on mortgage of the undertaking thirty-seven thousand five hundred pounds and authorised to construct the tramways therein described and to execute the other works therein mentioned:

And whereas by the Falkirk and District Tramways (Extensions) Order 1906 (in this Order called "the Order of 1906") the Company was authorised to raise additional share capital to the amount of one hundred thousand pounds and to borrow a further sum of twenty-five thousand pounds and to construct additional tramways in extension of their tramway system and execute the street works in that Order described:

And whereas the Company has created and issued nine thousand six hundred and twenty-six shares of ten pounds each and such shares are fully paid up and has borrowed on mortgage of the undertaking the sum of twenty-two thousand pounds:

And whereas the Company has constructed and opened for the public conveyance of passengers the whole of the tramways by the Order of 1901 authorised and certain of the tramways by the Order of 1906 authorised:

And whereas the time limited by the Order of 1906 for the compulsory acquisition of the lands required for the street works after mentioned expired on the twenty-first day of December one

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thousand nine hundred and nine and the time limited by the Order of 1906 for the completion of the tramways and street works after mentioned expired on the twenty-first day of December one thousand nine hundred and eleven: A.D. 1912.

And whereas it is expedient that the powers conferred on the Company by the Order of 1906 for the construction of Tramways Nos. 2 2A and 3 and the street works A B D E F G H I J K L M and N by that Order authorised and for acquiring compulsorily the lands required for such street works should be revived and that the periods within which such powers respectively may be exercised should be extended as by this Order provided:

And whereas it is expedient that the powers of the Company to borrow money on mortgage of the undertaking should be extended as in this Order provided:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Falkirk and District Tramways Order 1912 and the Order of 1901 the Order of 1906 and this Order may be cited together as the Falkirk and District Tramways Orders 1901 to 1912 This Order shall come into operation at the date of the passing of the Act confirming the same which date is in this Order referred to as “the commencement of this Order.” Short titles and commencement of Order.

2. The powers granted by the Order of 1906 for the compulsory purchase of lands for the purposes of the street works A B D E F G H I J K L M and N by the Order of 1906 authorised are hereby revived and extended and shall continue in force and may be exercised by the Company for a period of three years from the twenty-first day of December one thousand nine hundred and eleven and on the expiration of that period those powers shall cease. Revival of powers and extension of time for acquisition of lands.

3. The powers granted by the Order of 1906 for the construction of Tramways Nos. 2 2A and 3 and the street works A B D E F G H I J K L M and N by the Order of 1906 Revival of powers and extension of time for com-

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A.D. 1912. authorised are hereby revived and extended and may be exercised
pletion of by the Company for the period of three years from the twenty-
certain tram- first day of December one thousand nine hundred and eleven
ways and and sections 14 (Period for completion of tramways) 77 (Tramway
street works. deposit fund not to be repaid except so far as tramways are
opened) and 78 (Application of deposit fund) of the Order of
1906 shall be read and construed as if the period by this Order
limited for the completion of the said tramways and street works
had been the period limited by the Order of 1906 for the com-
pletion thereof and section 76 (Power to pay interest out of
capital during construction) of the Order of 1906 shall be read
and construed as if the commencement of this Order had been
the date from which the period of five years therein mentioned
should take effect and apply.

If the said tramways and street works are not completed
within the said period of three years then on the expiration of
that period the powers for making and completing the same or
otherwise in relation thereto shall cease except as to so much
thereof as shall then be completed.

Use of tram-
way posts by
Postmaster-
General.

4.—(1) It shall be lawful for the Postmaster-General in any
street or public road or part of a street or public road in which
he is authorised to place a telegraph to use for the support of
such telegraph any posts and standards (with the brackets con-
nected therewith) erected in any such street or public road by
the Company in connexion with the tramways authorised by the
Order of 1901 and the Order of 1906 (including the parts thereof
the powers with respect to which are by this Order revived
and extended) and to lengthen adapt alter and replace such
posts standards and brackets for the purpose of supporting
any telegraph and from time to time to alter any telegraph so
supported subject to the following conditions:—

(A) In placing maintaining or altering such telegraph no
obstruction shall be caused to the traffic along or the
working or user of the tramways:

(B) The Postmaster-General shall give to the Company not
less than twenty-eight days' notice in writing of his
intention to exercise any of the powers of this section
and shall in such notice specify the streets or public
roads or parts of streets or public roads along which
it is proposed to exercise such powers and the manner

in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided : A.D. 1912.

- (c) Unless otherwise agreed between the Postmaster-General and the Company the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Company or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :
- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided :
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair :
- (g) The Postmaster-General shall make good to the Company and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-

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General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Company their officers or servants:

- (H) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Company and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Company or failing agreement determined as herein-after provided:
- (I) The Company shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Company of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Company their officers or servants:
- (J) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Company the value of the same. Provided that if the Company or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Company from using their posts standards or brackets for the support of any of their electric wires and apparatus in connexion

with their tramways or shall take away any existing right of the local authority of using the posts standards or brackets of the Company in connexion with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and the local authority in relation to the use of the posts standards or brackets by the Postmaster-General and the local authority respectively shall be determined as herein-after provided. A.D. 1912.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression “the Company” includes their lessees;

The expression “telegraph” has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

5. Clauses eighteenth and nineteenth of the agreement set forth in the Second Schedule to the Order of 1901 clause eighth of the agreement as amended set forth in the Third Schedule to that Order and section 81 of the Order of 1906 are hereby repealed and in lieu thereof the following provisions shall take effect and apply viz.:— As to purchase of tramways by local authorities.

(1) Notwithstanding anything in the Tramways Act 1870 contained the powers of purchase conferred by section 43 of that Act shall (except in the case of an order being made in pursuance of section 41 or section 42 of that Act) be exercisable as regards the whole tramways and undertaking of the Company by the Orders of 1901 and 1906 authorised (including the parts thereof the powers with respect to which are by this Order revived and extended) only within the times and upon the terms in this section prescribed (that is to say):—

(A) Within six months from and after the twenty-first day of December one thousand nine hundred and thirty-three upon the terms of the payment to the Company of a sum equal to the

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value of the said tramways and undertaking and also a sum equal to the net profits of such undertaking for the three years immediately preceding the said twenty-first day of December one thousand nine hundred and thirty-three;

(B) Within six months from and after the twenty-first day of December one thousand nine hundred and forty or within six months after the expiration of any subsequent period of seven years upon the terms contained in the said forty-third section of the Tramways Act 1870;

The value of the said tramways and undertaking shall (in the event of the purchase of the same within six months from and after the said twenty-first day of December one thousand nine hundred and thirty-three or within two months thereafter as herein-after provided) be the cost of the construction of the works and undertaking of the said tramways including the costs of obtaining the Order of 1901 the Order of 1906 and this Order but allowing a reasonable deduction for depreciation. Provided that with respect to the tramways so far as the same are situate within the present boundaries of the burgh of Falkirk the said net profits shall be deemed to mean the net profits derived by the Company from working the said tramways upon week-days only and shall not include any profits derived from working the tramways upon Sundays;

And the Company shall keep separate accounts showing the earnings and expenses of and connected with the working of the tramways on week-days and Sundays respectively and such accounts shall for the purposes of this section be open to the inspection of the local authority of the burgh of Falkirk:

- (2) The Company shall not be bound to sell any portion of their tramways and undertaking unless within six months from and after the said respective dates of purchase each of the local authorities in whose districts the said tramways are situate shall have required the Company to sell to them the portion of the said tramways and undertaking situate within

their district Provided that if any of the said local authorities shall fail for six months from and after any of the said dates of purchase herein-before prescribed to require the Company to sell to them the portion of the said tramways and undertaking situate within their district any other or others of such local authorities may within two months after the expiration of such six months require the Company to sell to them such portion of the said tramways and undertaking in like manner as the local authority so failing might have done but no purchase under this section shall take effect unless the whole of the said tramways and undertaking are at the same time purchased by the said local authorities or authority :

(3) In the event of any difference—

(A) Between the Company on the one hand and the local authority or local authorities purchasing on the other hand as to the price to be paid to the Company for the whole of the said tramways and undertaking ; or

(B) Between the local authorities purchasing as to the proportion of the undertaking to be acquired or the proportion of the price to be borne and paid by each of them—

such difference shall be referred to an arbiter to be appointed by the Board of Trade on the application of the Company or any of the local authorities :

(4) In the event of any local authority purchasing under the provisions of this section any portion of the said tramways and undertaking situate beyond their district the provisions of the said forty-third section of the Tramways Act 1870 shall apply to such portion of the said tramways and undertaking as if the period terminating on the said twenty-first day of December one thousand nine hundred and forty were substituted for the period of twenty-one years mentioned in such section.

6. For the protection of the county council of the county of Stirling (in this section referred to as "the county council") the following provisions shall in addition to the provisions of section 35 of the Order of 1906 and except so far as may be

For protection of county council of county of Stirling.

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A.D. 1912. otherwise agreed between the county council and the Company
— have effect (that is to say):—

- (1) In this section the expression "the tramways" means the tramways and any part thereof situate on roads within the jurisdiction of the county council the powers with respect to which are by this Order revived and extended:
- (2) The Company shall to the reasonable satisfaction of the county council pave with whinstone or granite setts to the extent of 18 inches on the outer side of each rail and 9 inches on the inner side of each rail the roads on which the tramways are to be constructed:
- (3) All snow removed by the Company from the tramways in pursuance of the provisions of section 32 of the Order of 1906 shall as soon as may reasonably be possible be carted or taken away from the sides of the roads by the Company and shall not be allowed to remain on the sides of such roads:
- (4) The provisions of subsections (2) and (3) of section 36 and subsections (5) and (7) of section 37 of the Order of 1906 shall mutatis mutandis extend and apply to the county council and the tramways and the roads on which the same are situate:
- (5) Upon receiving from the Company notice in writing that the construction of the tramways is to be proceeded with accompanied by a remittance of the sum herein-after mentioned the county council shall with all reasonable despatch widen to the reasonable satisfaction of the Company the portion of Grange-mouth Road between the boundary of the burgh of Falkirk and Mid-Thorn so that the said road shall between these points be of such width as may be determined by the county council being not less than a uniform width of forty feet between the outer fences The Company shall upon said notice being given pay to the county council the sum of one thousand five hundred pounds as a contribution towards the cost of the said widening including the acquisition from adjoining proprietors of the ground necessary therefor subject to which contribution the

county council shall bear the entire cost of the operation. The county council shall free and relieve the Company of and from all their obligations under any agreements made with proprietors of lands in connexion with the said proposed widening. The Company shall not unless with the consent in writing of the county council commence the construction of the tramways between the points before mentioned until the said portion of Grangemouth Road has been widened to a uniform width of not less than forty feet between the outer fences. The Company shall construct the tramways in the centre of the road as so widened. Provided that in the event of the widening of the said portion of Grangemouth Road involving an alteration of any telegraphic line belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration as aforesaid and the county council shall be deemed to be "undertakers" within the meaning of the said Act: A.D. 1912.

- (6) If after notice and payment by the Company in accordance with the immediately preceding subsection the county council in the opinion of the arbiter to be appointed as herein-after provided unreasonably delay the commencement of the said widening of Grangemouth Road or if after having commenced the work of said widening the county council in the opinion of the said arbiter unreasonably delay to complete the same the Company shall in their option be entitled to carry out the said widening or so much thereof as may not have been completed in terms of section 5 of the Order of 1906 and the county council shall on the said widening being completed by the Company to the uniform width of forty feet as before specified pay to the Company the sum of one hundred pounds and also repay to the Company if the county council have not commenced said work the said sum of one thousand five hundred pounds with interest thereon at the rate of five per cent. per annum from the date of payment thereof by the Company to the county council or in the event of

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the county council having commenced said widening but failed to complete the same such part of the said sum of one thousand five hundred pounds as failing agreement the said arbiter shall deem to be reasonable in the circumstances:

- (7) Any dispute or difference between the county council and the Company under this section (including any question as to the reasonableness of any condition sought to be enforced by the county council) shall be referred to an arbiter appointed by the Board of Trade.

Repeal of section 6 of Order of 1906.

7. Section 6 of the Order of 1906 is hereby repealed.

For protection of local authority of burgh of Falkirk.

8. For the protection of the provost magistrates and councillors of the burgh of Falkirk (in this section respectively referred to as "the local authority" and "the burgh") the following provisions shall in supplement of the provisions of sections 36 and 37 of the Order of 1906 and except so far as may be otherwise agreed in writing between the local authority and the Company have effect (that is to say):—

- (1) The Company shall not oppose any extension of the boundaries of the burgh provided that the same does not involve any invasion of the Company's rights under the Order of 1901 and the agreements scheduled thereto the Order of 1906 or this Order:

- (2) The provisions of paragraph (b) of subsection (8) of section 37 of the Order of 1906 are hereby varied as follows viz. The sum of seven hundred and fifty pounds being one-half of the sum of one thousand five hundred pounds therein mentioned shall be paid by the Company to the local authority on the twenty-first day of December one thousand nine hundred and fourteen the sum of seven hundred and fifty pounds (the other half of the said sum of one thousand five hundred pounds) having been paid by the Company to the local authority on the twenty-ninth day of September one thousand nine hundred and nine.

Amendment of section 30 of Order of 1901 and

9. Section 30 (Power to borrow) of the Order of 1901 shall be read and construed as if the words "fifty thousand" had been substituted for the words "thirty-seven thousand five

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hundred" and the words "six thousand" for the words "eight thousand" and section 67 (Power to borrow) of the Order of 1906 shall be read and construed as if the words "thirty-three thousand three hundred and thirty-three" had been substituted for the words "twenty-five thousand" and the words "six thousand" for the words "eight thousand" Provided that every mortgage or other deed made before the commencement of this Order in pursuance of the said sections or either of them shall be of the same force as if this Order had not been made and confirmed and for the purposes of that deed the said sections in their original terms shall respectively be deemed to remain in full force.

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section 67
of Order of
1906.

10. Nothing in this Order contained shall exempt the Company or their tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised to be taken by the Company.

Provision as
to general
Tramway
Acts.

11. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company.

Costs of
Order.

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